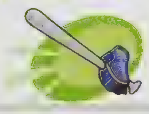
"easy option" being offered to you over the phone is going to be easy in the long run. —**Nora Dunn**

5 Laws the Leg-Breakers Don't Want You to Know About



Gone are the days when debt collectors only hassled the lazy, financially inept, or the completely downtrodden and hopelessly unlucky. More and more consumers are being contacted by debt collectors as part of an attempt to be paid for past-due accounts, either for their own debt, debt inherited as a condition of a death in the family, or as a horrible consequence to an identity theft. Whether or not you actually owe the money, the rules are the same. Debt collectors acting as a third-party interest in past-due accounts are bound by the laws of the FDCPA. Learning what they can (and, more importantly: *can't*) do is vital to protecting your rights and preventing undue stress.

The Fair Debt Collection Practices Act, often referred to as the FDCPA, was passed by Congress in response to abusive conduct by collection agencies. Here are five actions that are considered illegal under the Act.

1. Contacting a third party not involved with the debt

This means that if your boyfriend's name is on the debt, they can call him. They cannot, however, contact Aunt Edna. They also cannot call you at work if it has been made known to them that it is a violation of a work policy. Once you tell them that they cannot call you at work anymore, they need to comply.

2. Threatening you

This includes threats to sue you, throw you in jail, garnish your wages, or kill your dog. They can inform you of an actual impending intention to refer your case to an attorney or to report your debt to a credit agency, but not with the intention of getting you to pay. Additionally, they cannot be a potty mouth by using racial slurs, insults, or profanity to make their point.